

1. C.P. v. DOE 1, ET AL., 22CV1120**Motion to Compel Compliance with Document Production Response**

On July 10, 2026, pursuant to Code of Civil Procedure section 2031.320, defendant County of El Dorado (“defendant”) filed a motion to compel plaintiff C.P.’s (“plaintiff”) compliance with Request for Production (“RFP”) Number 17, included in defendant’s RFP (Set Two) propounded upon plaintiff. Plaintiff allegedly indicated in his discovery response that he would produce documents in his possession responsive to RFP Number 17 but, to date, he has not done so. Defendant’s motion also includes a request for a monetary sanction in the amount of \$1,090.50.

On August 4, 2026, plaintiff filed an untimely opposition; the deadline was August 3, 2026. (Code Civ. Proc., § 1005, subd. (b).) Attached thereto is a declaration of plaintiff’s attorney, Ryan Jones.

On August 7, 2026, defendant filed a timely reply, as well as evidentiary objections to the declaration of Ryan Jones.

1. Background

RFP Number 17 calls for all writings plaintiff referred to at deposition when asked whether he ever kept a diary or journal. Plaintiff allegedly testified that he had kept a diary or journal and believed it still existed. (Jones Decl., ¶ 2.)

On August 4, 2026, plaintiff served an amended response to RFP, Set Two. (Little Decl., filed Aug. 7, 2026, ¶ 6.) A copy of the amended response was not submitted in connection to this motion. However, plaintiff’s opposition brief states that plaintiff’s amended response to RFP Number 17 indicates, pursuant to Code of Civil Procedure section 2031.230, that plaintiff is unable to comply with the request because the responsive documents have never existed, have been destroyed, have been lost, misplaced, or stolen, or have never been, or are no longer in the possession, custody or control of plaintiff.

2. Evidentiary Objections

Defendant filed seven objections. The court sustains Objection Numbers 1, 2, 3, 4, 5, 6. The court overrules Objection Number 7.

3. Discussion

Based on plaintiff's amended response to RFP Set Two, the court denies defendant's motion to compel compliance as moot.

The court, however, finds it appropriate to impose a monetary sanction against plaintiff and plaintiff's attorney, jointly and severally. As defendant points out, plaintiff did not attempt to search for the journal or diary at issue until after defendant filed the instant motion to compel. Having read and considered the declarations from defense counsel, the court finds that \$742.50 is an appropriate amount under the Civil Discovery Act, representing 2.7 hours of legal work at \$275 per hour. (Little Decl., filed Jul. 10, 2026, ¶ 11.)

TENTATIVE RULING # 1: DEFENDANT'S MOTION TO COMPEL COMPLIANCE IS DENIED AS MOOT. HOWEVER, THE COURT IMPOSES A MONETARY SANCTION AGAINST PLAINTIFF AND HIS ATTORNEY OF RECORD, JOINTLY AND SEVERALLY. PLAINTIFF AND HIS ATTORNEY OF RECORD SHALL PAY DEFENDANT COUNTY OF EL DORADO A MONETARY SANCTION OF \$742.50 NO LATER THAN SEPTEMBER 18, 2026.

NO HEARING ON THIS MATTER WILL BE HELD (*LEWIS v. SUPERIOR COURT* (1999) 19 CAL.4TH 1232, 1247), UNLESS A NOTICE OF INTENT TO APPEAR AND REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY TELEPHONE TO THE COURT AT (530) 573-3042 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. NOTICE TO ALL PARTIES OF AN INTENT TO APPEAR MUST BE MADE BY TELEPHONE OR IN PERSON. PROOF OF SERVICE OF SAID NOTICE MUST BE MADE BY TELEPHONE OR IN PERSON. PROOF OF SERVICE OF SAID NOTICE MUST BE FILED PRIOR TO OR AT THE HEARING.